

Syllabus

THRYV, INC., FKA DEX MEDIA, INC. *v.* CLICK-TO-CALL TECHNOLOGIES, LP, ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FEDERAL CIRCUIT

No. 18–916. Argued December 9, 2019—Decided April 20, 2020

Inter partes review is an administrative process that permits a patent challenger to ask the U. S. Patent and Trademark Office to reconsider the validity of earlier granted patent claims. For inter partes review to proceed, the agency must agree to institute review. See 35 U. S. C. § 314. Among other conditions set by statute, if a request comes more than a year after suit against the requesting party for patent infringement, “[a]n inter partes review may not be instituted.” § 315(b). The agency’s “determination . . . whether to institute an inter partes review under this section shall be final and nonappealable.” § 314(d).

Entities associated with petitioner Thryv, Inc., sought inter partes review of a patent owned by respondent Click-to-Call Technologies, LP. Click-to-Call countered that the petition was untimely under § 315(b). The Patent Trial and Appeal Board (Board) disagreed and instituted review. After proceedings on the merits, the Board issued a final written decision reiterating its § 315(b) decision and canceling 13 of the patent’s claims as obvious or lacking novelty. Click-to-Call appealed the Board’s § 315(b) determination. Treating the Board’s application of § 315(b) as judicially reviewable, the Court of Appeals concluded that the petition was untimely, vacated the Board’s decision, and remanded with instructions to dismiss.

Held: Section 314(d) precludes judicial review of the agency’s application of § 315(b)’s time prescription. Pp. 52–60.

(a) A party generally cannot contend on appeal that the agency should have refused “to institute an inter partes review.” § 314(d). That follows from § 314(d)’s text and *Cuozzo Speed Technologies, LLC v. Lee*, 579 U. S. 261. In *Cuozzo*, this Court explained that § 314(d) “preclud[es] review of the Patent Office’s institution decisions”—at least “where the grounds for attacking the decision to institute inter partes review consist of questions that are closely tied to the application and interpretation of statutes related to the Patent Office’s decision to initiate inter partes review.” *Id.*, at 274–275. Pp. 52–53.

(b) The question here is whether a challenge based on § 315(b) ranks as an appeal of the agency’s decision “to institute an inter partes review.” § 314(d). There is no need to venture beyond *Cuozzo*’s holding

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that §314(d) bars review at least of matters “closely tied to the application and interpretation of statutes related to” the institution decision, 579 U. S., at 275. A §315(b) challenge easily meets that measurement. Section 315(b), setting forth a circumstance in which “[a]n inter partes review may not be instituted,” expressly governs institution and nothing more. Pp. 53–54.

(c) This conclusion is strongly reinforced by the statute’s purpose and design. Congress designed inter partes review to weed out bad patent claims efficiently. Allowing §315(b) appeals, however, would unwind agency proceedings determining patentability and leave bad patents enforceable. Pp. 54–56.

(d) In Click-to-Call’s view, §314(d)’s bar on judicial review is limited to the agency’s threshold determination under §314(a) of the question whether the petitioner has a reasonable likelihood of prevailing. *Cuozzo* is fatal to that interpretation, for the Court in that case held unreviewable the agency’s application of a provision other than §314(a). Contrary to Click-to-Call’s contention, §314(d)’s text does not limit the review bar to §314(a). Rather than borrowing language from related provisions that would have achieved Click-to-Call’s preferred meaning, Congress used broader language in §314(d). Click-to-Call also insists that Congress intended judicial supervision of the agency’s application of §315(b), but the statute instead reflects a choice to entrust that issue to the agency. Finally, *SAS Institute Inc. v. Iancu*, 584 U. S. 357, offers Click-to-Call no assistance. Unlike the appeal held reviewable in *SAS Institute*, Click-to-Call’s appeal challenges not the manner in which the agency’s review proceeds once instituted, but whether the agency should have instituted review at all. Pp. 56–59.

(e) Click-to-Call argues in the alternative that its §315(b) objection is authorized as an appeal from the Board’s final written decision, which addressed the §315(b) issue. Even labeled that way, Click-to-Call’s appeal is still barred by §314(d) because Click-to-Call’s contention remains, essentially, that the agency should have refused to institute inter partes review. P. 60.

899 F. 3d 1321, vacated and remanded.

GINSBURG, J., delivered the opinion of the Court, in which ROBERTS, C. J., and BREYER, KAGAN, and KAVANAUGH, JJ., joined, and in which THOMAS and ALITO, JJ., joined except as to Part III–C. GORSUCH, J., filed a dissenting opinion, in which SOTOMAYOR, J., joined as to Parts I, II, III, and IV, *post*, p. 61.

Adam H. Charnes argued the cause for petitioner. With him on the briefs were *Jason P. Sneed*, *Mitchell G. Stockwell*, and *Thurston Webb*.

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Jonathan Y. Ellis argued the cause for the federal respondent urging reversal under this Court’s Rule 12.6. With him on the brief were *Solicitor General Francisco, Assistant Attorney General Hunt, Deputy Solicitor General Stewart, Mark F. Freeman, Edward Himmelfarb, Melissa N. Patterson, Sarah T. Harris, Thomas W. Krause, Farheena Y. Rasheed, and Molly R. Silfen.*

Daniel L. Geyser argued the cause for respondent Click-to-Call Technologies, LP. With him on the brief were *Peter J. Ayers* and *Craig J. Yudell*.*

JUSTICE GINSBURG delivered the opinion of the Court.†

Inter partes review is an administrative process in which a patent challenger may ask the U. S. Patent and Trademark Office (PTO) to reconsider the validity of earlier granted patent claims. This case concerns a statutorily prescribed limi-

*Briefs of *amici curiae* urging reversal were filed for AARP et al. by *Barbara A. Jones* and *William Alvarado Rivera*; for the Atlanta Gas Light Co. by *Jeffrey S. Bucholtz* and *Russell E. Blythe*; for Intel Corp. by *Donald B. Verrilli, Jr.*, and *Ginger D. Anders*; for ON Semiconductor Corp. et al. by *Kathleen M. Sullivan* and *Michael Hawes*; and for Superior Communications, Inc., by *Sydney Leach* and *Andrew M. Jacobs*.

Briefs of *amici curiae* urging affirmance were filed for the Biotechnology Innovation Organization by *Amy Mason Saharia, Hans Sauer, and Melissa Brand*; for the New York Intellectual Property Law Association by *Irena Royzman, Colman B. Ragan, Robert J. Rando, and Matthew Kaufman*; for Pharmaceutical Research and Manufacturers of America by *Scott E. Kamholz, James C. Stansel, and David E. Korn*; for Power Integrations, Inc., by *Alexandra A. E. Shapiro, John W. Thornburgh, and Frank E. Scherkenbach*; for Professors of Patent Law et al. by *Jonathan A. Herstoff* and *Saurabh Vishnubhakat, pro se*; and for Stephen I. Vladeck by *J. Carl Cecere*.

Briefs of *amici curiae* were filed for the American Intellectual Property Law Association by *Erick J. Palmer* and *Sheldon H. Klein*; for the Federal Circuit Bar Association by *Naresh Kilaru*; and for the PTAB Bar Association by *Adam G. Unikowski, Aaron A. Barlow, Michael G. Babbitt, Gabriel K. Gillett, and Naveen Modi*.

†JUSTICE THOMAS and JUSTICE ALITO join all but Part III–C of this opinion.

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tation of the issues a party may raise on appeal from an inter partes review proceeding.

When presented with a request for inter partes review, the agency must decide whether to institute review. 35 U. S. C. § 314. Among other conditions set by statute, if the request comes more than a year after suit against the requesting party for patent infringement, “[a]n inter partes review may not be instituted.” § 315(b). “The determination by the [PTO] Director whether to institute an inter partes review under this section shall be final and nonappealable.” § 314(d).‡

In this case, the agency instituted inter partes review in response to a petition from Thryv, Inc., resulting in the cancellation of several patent claims. Patent owner Click-to-Call Technologies, LP, appealed, contending that Thryv’s petition was untimely under § 315(b).

The question before us: Does § 314(d)’s bar on judicial review of the agency’s decision to institute inter partes review preclude Click-to-Call’s appeal? Our answer is yes. The agency’s application of § 315(b)’s time limit, we hold, is closely related to its decision whether to institute inter partes review and is therefore rendered nonappealable by § 314(d).

I

The Patent and Trademark Office has several ways “to reexamine—and perhaps cancel—a patent claim that it had previously allowed.” *Cuozzo Speed Technologies, LLC v. Lee*, 579 U. S. 261, 267 (2016). Congress established the procedure at issue here, inter partes review, in the Leahy-Smith America Invents Act (AIA), 125 Stat. 284, enacted in 2011. See 35 U. S. C. § 311 *et seq.* Inter partes review allows third parties to challenge patent claims on grounds of invalidity specified by statute. § 311(b).

For inter partes review to proceed, the agency must agree to institute review. § 314. Any person who is not the pat-

‡Key statutory provisions are reproduced in an appendix to this opinion.

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ent’s owner may file a petition requesting inter partes review. §311(a). The patent owner may oppose institution of inter partes review, asserting the petition’s “failure . . . to meet any requirement of this chapter.” §313.

The AIA sets out prerequisites for institution. Among them, “[t]he Director may not authorize an inter partes review to be instituted unless the Director determines . . . that there is a reasonable likelihood that the petitioner would prevail with respect to at least 1 of the claims challenged in the petition.” §314(a). Most pertinent to this case, “[a]n inter partes review may not be instituted if the petition requesting the proceeding is filed more than 1 year after the date on which the petitioner, real party in interest, or privy of the petitioner is served with a complaint alleging infringement of the patent.” §315(b).

After receiving the petition and any response, the PTO “Director shall determine whether to institute an inter partes review under this chapter.” §314(b). The Director has delegated institution authority to the Patent Trial and Appeal Board (Board). 37 CFR §42.4(a) (2019). As just noted, the federal agency’s “determination . . . whether to institute an inter partes review under this section” is “final and nonappealable.” 35 U. S. C. §314(d).

Upon electing to institute inter partes review, the Board conducts a proceeding to evaluate the challenged claims’ validity. See §316. At the conclusion of the proceeding—if review “is instituted and not dismissed”—the Board “issue[s] a final written decision with respect to the patentability of” the challenged claims. §318(a). “A party dissatisfied with the final written decision . . . may appeal the decision” to the Court of Appeals for the Federal Circuit. §319.

II

Respondent Click-to-Call owns a patent relating to a technology for anonymous telephone calls, U. S. Patent No. 5,818,836 (’836 patent). In 2013, petitioner Thryv sought

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inter partes review, challenging several of the patent's claims.¹

In opposition, Click-to-Call urged that § 315(b) barred institution of inter partes review because Thryv filed its petition too late. Click-to-Call pointed to an infringement suit filed in 2001, which ended in a voluntary dismissal without prejudice.² In Click-to-Call's view, that 2001 suit started § 315(b)'s one-year clock, making the 2013 petition untimely.

The Board disagreed. Section 315(b) did not bar the institution of inter partes review, the Board concluded, because a complaint dismissed without prejudice does not trigger § 315(b)'s one-year limit. Finding no other barrier to institution, the Board decided to institute review. After proceedings on the merits, the Board issued a final written decision reiterating its rejection of Click-to-Call's § 315(b) argument and canceling 13 of the patent's claims as obvious or lacking novelty.

Click-to-Call appealed, challenging only the Board's determination that § 315(b) did not preclude inter partes review. The Court of Appeals dismissed the appeal for lack of jurisdiction, agreeing with Thryv and the Director (who intervened on appeal) that § 314(d)'s bar on appeal of the institution decision precludes judicial review of the agency's application of § 315(b). Citing our intervening decision in *Cuozzo*, 579 U. S., at 274–275, we granted certiorari, vacated the judgment, and remanded. *Click-to-Call Technologies, LP v.*

¹More precisely, the petition was filed by four companies, including YellowPages.com, LLC, and Ingenio, LLC. Through “a series of mergers, sales, and name changes,” both became Thryv. Brief for Petitioner 8. For simplicity, we refer to Thryv and its predecessor entities as “Thryv.”

²The 2001 suit was brought by Inforocket.Com, Inc.—then the exclusive licensee of the '836 patent—against Keen, Inc. See *Inforocket.Com, Inc. v. Keen, Inc.*, No. 1:01-cv-05130 (SDNY). While the suit was pending, Keen acquired Inforocket and the District Court dismissed the suit without prejudice. By the time of the inter partes review petition, Keen had become Ingenio (now Thryv).

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Oracle Corp., 579 U.S. 925 (2016). On remand, the Court of Appeals again dismissed the appeal on the same ground.

Thereafter, in another case, the en banc Federal Circuit held that “time-bar determinations under §315(b) are appealable” notwithstanding §314(d). *Wi-Fi One, LLC v. Broadcom Corp.*, 878 F.3d 1364, 1367 (2018). The majority opinion construed §314(d)’s reference to the determination whether to institute inter partes review “under this section” as trained on the likelihood-of-success requirement stated in §314(a). *Id.*, at 1372. The §315(b) timeliness determination, the majority concluded, “is not ‘closely related’ to the institution decision addressed in §314(a).” *Id.*, at 1374 (quoting *Cuozzo*, 579 U.S., at 276). The majority therefore held that for §315(b) appeals, §314(d) does not displace the usual presumption favoring judicial review of agency action. *Wi-Fi One*, 878 F.3d, at 1374–1375. In a concurring opinion, Judge O’Malley emphasized a “simpler” basis for the same conclusion. *Id.*, at 1375. In her view, §314(d) shields from review only the agency’s assessment of a petition’s “substantive adequacy,” not questions about the agency’s “authority to act.” *Id.*, at 1376.

Judge Hughes, joined by Judges Lourie, Bryson, and Dyk, dissented, expressing a position that today’s dissent characterizes as “extraordinary.” *Post*, at 66. Those judges concluded that §314(d) conveys Congress’ “clear and unmistakable” “intent to prohibit judicial review of the Board’s [inter partes review] institution decision.” *Wi-Fi One*, 878 F.3d, at 1378. That prohibition applies to §315(b) issues, the Federal Circuit dissenters maintained, because §315(b) “describes when an [inter partes review] may be ‘instituted.’” *Id.*, at 1377, 1378–1379 (quoting §315(b)).

In light of its en banc decision in *Wi-Fi One*, the Court of Appeals granted panel rehearing in this case. Treating the Board’s application of §315(b) as judicially reviewable, the panel’s revised opinion held that the Board erred by instituting review. The petition for inter partes review here was

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untimely, the Court of Appeals held, because the 2001 infringement complaint, though dismissed without prejudice, started the one-year clock under § 315(b).³ The court therefore vacated the Board’s final written decision, which had invalidated 13 of Click-to-Call’s claims for want of the requisite novelty and nonobviousness, and remanded with instructions to dismiss.

We granted certiorari to resolve the reviewability issue, 588 U.S. 905 (2019), and now vacate the Federal Circuit’s judgment and remand with instructions to dismiss the appeal for lack of appellate jurisdiction.

III

A

To determine whether § 314(d) precludes judicial review of the agency’s application of § 315(b)’s time prescription, we begin by defining § 314(d)’s scope. Section 314(d)’s text renders “final and nonappealable” the “determination by the Director whether *to institute an inter partes review* under this section.” § 314(d) (emphasis added). That language indicates that a party generally cannot contend on appeal that the agency should have refused “to institute an inter partes review.”

We held as much in *Cuozzo*. There, a party contended on appeal that the agency should have refused to institute inter partes review because the petition failed § 312(a)(3)’s requirement that the grounds for challenging patent claims must be identified “with particularity.” 579 U.S., at 270 (internal

³ A footnote in the panel’s opinion noted that the Court of Appeals sitting en banc had considered and agreed with the panel majority’s conclusion that a complaint voluntarily dismissed without prejudice can trigger § 315(b)’s time bar. *Click-to-Call Technologies, LP v. Ingenio, Inc.*, 899 F.3d 1321, 1328, n. 3 (CA Fed. 2018). On that issue, Judge Taranto issued a concurring opinion, *id.*, at 1343–1347, and Judge Dyk, joined by Judge Lourie, issued a dissenting opinion, *id.*, at 1350–1355. That question is outside the scope of our review.

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quotation marks omitted). This “contention that the Patent Office unlawfully initiated its agency review is not appealable,” we held, for “that is what §314(d) says.” *Id.*, at 271. Section 314(d), we explained, “preclud[es] review of the Patent Office’s institution decisions” with sufficient clarity to overcome the “‘strong presumption’ in favor of judicial review.” *Id.*, at 273–274 (quoting *Mach Mining, LLC v. EEOC*, 575 U.S. 480, 486 (2015)). See *Cuozzo*, 579 U.S., at 273 (finding “‘clear and convincing’ indications . . . that Congress intended to bar review” (quoting *Block v. Community Nutrition Institute*, 467 U.S. 340, 349–350 (1984))).

We reserved judgment in *Cuozzo*, however, on whether §314(d) would bar appeals reaching well beyond the decision to institute inter partes review. 579 U.S., at 275. We declined to “decide the precise effect of §314(d) on,” for example, “appeals that implicate constitutional questions.” *Ibid.* Instead, we defined the bounds of our holding this way: “[O]ur interpretation applies where the grounds for attacking the decision to institute inter partes review consist of questions that are closely tied to the application and interpretation of statutes related to the Patent Office’s decision to initiate inter partes review.” *Id.*, at 274–275.

B

We therefore ask whether a challenge based on §315(b) ranks as an appeal of the agency’s decision “to institute an inter partes review.” §314(d). We need not venture beyond *Cuozzo*’s holding that §314(d) bars review at least of matters “closely tied to the application and interpretation of statutes related to” the institution decision, *id.*, at 275, for a §315(b) challenge easily meets that measurement.

Section 315(b)’s time limitation is integral to, indeed a condition on, institution. After all, §315(b) sets forth a circumstance in which “[a]n inter partes review may not be instituted.” Even Click-to-Call and the Court of Appeals

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recognize that § 315(b) governs institution. See Brief for Respondent Click-to-Call 1 (§ 315(b) is “a clear limit on the Board’s institution authority”); *Wi-Fi One*, 878 F.3d, at 1373 (“§ 315(b) controls the Director’s authority to institute [inter partes review]”).

Because § 315(b) expressly governs institution and nothing more, a contention that a petition fails under § 315(b) is a contention that the agency should have refused “to institute an inter partes review.” § 314(d). A challenge to a petition’s timeliness under § 315(b) thus raises “an ordinary dispute about the application of” an institution-related statute. *Cuozzo*, 579 U.S., at 271. In this case as in *Cuozzo*, therefore, § 314(d) overcomes the presumption favoring judicial review.⁴

C

The AIA’s purpose and design strongly reinforce our conclusion. By providing for inter partes review, Congress, concerned about overpatenting and its diminishment of competition, sought to weed out bad patent claims efficiently. See *id.*, at 272; H. R. Rep. No. 112–98, pt. 1, p. 40 (2011) (“The legislation is designed to establish a more efficient and streamlined patent system that will improve patent quality and limit unnecessary and counterproductive litigation costs.”).⁵

⁴We do not decide whether mandamus would be available in an extraordinary case. Cf. *Cuozzo Speed Technologies, LLC v. Lee*, 579 U.S. 261, 291, n. 5 (2016) (ALITO, J., concurring in part and dissenting in part).

⁵The dissent acknowledges that “Congress authorized inter partes review to encourage further scrutiny of already issued patents.” *Post*, at 74. Yet the dissent, despite the Court’s decision upholding the constitutionality of such review in *Oil States Energy Services, LLC v. Greene’s Energy Group, LLC*, 584 U.S. 325 (2018), appears ultimately to urge that Congress lacks authority to permit second looks. Patents are property, the dissent several times repeats, and Congress has no prerogative to allow “property-taking-by-bureaucracy.” *Post*, at 62, 78–81. But see *Oil States*, 584 U.S., at 335 (“patents are public franchises” (internal quotation

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Allowing § 315(b) appeals would tug against that objective, wasting the resources spent resolving patentability and leaving bad patents enforceable. A successful § 315(b) appeal would terminate in vacatur of the agency's decision; in lieu of enabling judicial review of patentability, vacatur would unwind the agency's merits decision. See *Cuozzo*, 579 U. S., at 272. And because a patent owner would need to appeal on § 315(b) untimeliness grounds only if she could not prevail on patentability, § 315(b) appeals would operate to save bad patent claims. This case illustrates the dynamic. The agency held Click-to-Call's patent claims invalid, and Click-to-Call does not contest that holding. It resists only the agency's institution decision, mindful that if the institution decision is reversed, then the agency's work will be undone and the canceled patent claims resurrected.

Other features of the statutory design confirm that Congress prioritized patentability over § 315(b)'s timeliness requirement. A petitioner's failure to satisfy § 315(b) does not prevent the agency from conducting inter partes review of the challenged patent claims; the agency can do so at another petitioner's request. § 311(a). Nor does failure to satisfy § 315(b) prevent the original initiator from participating on the merits; the § 315(b)-barred party can join a proceeding initiated by another petitioner. § 315(b), (c). And once inter partes review is instituted, the agency may issue a final written decision even "[i]f no petitioner remains in the inter partes review." § 317(a). It is unsurprising that a statutory scheme so consistently elevating resolution of patentability above a petitioner's compliance with § 315(b) would exclude § 315(b) appeals, thereby preserving the Board's adjudication of the merits.

marks omitted)). The second look Congress put in place is assigned to the very same bureaucracy that granted the patent in the first place. Why should that bureaucracy be trusted to give an honest count on first view, but a jaundiced one on second look? See *post*, at 79–80.

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Judicial review of § 315(b) rulings, moreover, would do little to serve other statutory goals. The purpose of § 315(b), all agree, is to minimize burdensome overlap between inter partes review and patent-infringement litigation. Brief for Petitioner 24; Brief for Federal Respondent 36; Brief for Respondent Click-to-Call 37. Judicial review *after* the agency proceedings cannot undo the burdens already occasioned. Nor are § 315(b) appeals necessary to protect patent claims from wrongful invalidation, for patent owners remain free to appeal final decisions on the merits. § 319.

IV

Click-to-Call advances a narrower reading of § 314(d). In Click-to-Call’s view, which the dissent embraces, *post*, at 66–78, the bar on judicial review applies only to the agency’s threshold determination under § 314(a) of the question whether the petitioner has a reasonable likelihood of prevailing. Section 314(d) addresses the “determination by the Director whether to institute inter partes review *under this section*” (emphasis added), and, Click-to-Call maintains, § 314(a) contains “the only substantive determination referenced in” the same section as § 314(d). Brief for Respondent Click-to-Call 16. This interpretation, Click-to-Call argues, supplies a clear rule consonant with the presumption favoring judicial review. Cf. *supra*, at 51 (Federal Circuit’s en banc *Wi-Fi One* decision).

Cuozzo is fatal to Click-to-Call’s interpretation. Section 314(d)’s review bar is not confined to the agency’s application of § 314(a), for in *Cuozzo* we held unreviewable the agency’s application of § 312(a)(3). 579 U. S., at 275. Far from limiting the appeal bar to § 314(a) and “nothing else” as Click-to-Call urges, Brief for Respondent 29, the Court’s opinion in *Cuozzo* explained that the bar extends to challenges grounded in “statutes related to” the institution decision. 579 U. S., at 275.

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The text of § 314(d) offers Click-to-Call no support. The provision sweeps more broadly than the determination about whether “there is a reasonable likelihood that the petitioner would prevail.” § 314(a). Rather, it encompasses the entire determination “whether to institute an inter partes review.” § 314(d).

And § 314(d) refers not to a determination under subsection (a), but to the determination “under this section.” That phrase indicates that § 314 governs the Director’s institution of inter partes review. Titled “Institution of inter partes review,” § 314 is the section housing the command to the Director to “determine whether to institute an inter partes review,” § 314(b). Thus, every decision to institute is made “under” § 314 but must take account of specifications in other provisions—such as the § 312(a)(3) particularity requirement at issue in *Cuozzo* and the § 315(b) timeliness requirement at issue here. Similar clarifying language recurs throughout the AIA. See, e. g., § 315(c) (referring to the Director’s determination regarding “the institution of an inter partes review *under section 314*” (emphasis added)); § 314(b) (referring to “a petition filed *under section 311*,” the section authorizing the filing of petitions (emphasis added)); § 314(b)(1) (referring to “a preliminary response to the petition *under section 313*,” the section authorizing the filing of preliminary responses to petitions (emphasis added)).

If Congress had intended Click-to-Call’s meaning, it had at hand readymade language from a precursor to § 314(d): “A determination by the Director under *subsection (a)* shall be final and non-appealable.” 35 U. S. C. § 312(c) (2006 ed.) (emphasis added) (governing inter partes reexamination). Or Congress might have borrowed from a related provision: “A determination by the Director pursuant to *subsection (a) of this section that no substantial new question of patentability has been raised* will be final and nonappealable.” 35 U. S. C. § 303(c) (emphasis added) (governing ex parte reex-

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amination). Instead, Congress chose to shield from appellate review the determination “whether *to institute an inter partes review* under *this section*.” § 314(d) (emphasis added). That departure in language suggests a departure in meaning. See *Henson v. Santander Consumer USA Inc.*, 582 U. S. 79, 86 (2017).

Click-to-Call doubts that Congress would have limited the agency’s institution authority in § 315(b) without ensuring judicial supervision. Congress entrusted the institution decision to the agency, however, to avoid the significant costs, already recounted, of nullifying a thoroughgoing determination about a patent’s validity. See *supra*, at 54–55. That goal—preventing appeals that would frustrate efficient resolution of patentability—extends beyond § 314(a) appeals.

Click-to-Call also contends that we adopted its interpretation of § 314(d) in *SAS Institute Inc. v. Iancu*, 584 U. S. 357 (2018). Neither of our holdings in that case assists Click-to-Call, and both holdings remain governing law. *SAS Institute* first held that once the agency institutes an inter partes review, it must “resolve *all* of the claims in the case.” *Id.*, at 359. *SAS Institute* located that rule in § 318(a), which requires the agency to decide “the patentability of *any* patent claim challenged by the petitioner.” *Ibid.* (emphasis in original; internal quotation marks omitted). *SAS Institute* next held that § 314(d) did not bar judicial review of § 318(a)’s application. *Id.*, at 370–371. Our decision explained that “nothing in § 314(d) or *Cuozzo* withdraws our power to ensure that an inter partes review proceeds in accordance with the law’s demands.” *Id.*, at 371. That reviewability holding is inapplicable here, for Click-to-Call’s appeal challenges not the manner in which the agency’s review “proceeds” once instituted, but whether the agency should have instituted review at all.

Click-to-Call homes in on a single sentence from *SAS Institute*’s reviewability discussion: “*Cuozzo* concluded that § 314(d) precludes judicial review only of the Director’s ‘ini-

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tial determination’ under § 314(a) that ‘there is a “reasonable likelihood” that the claims are unpatentable on the grounds asserted’ and review is therefore justified.” *Id.*, at 370–371 (quoting *Cuozzo*, 579 U. S., at 273). But that sentence’s account of *Cuozzo* is incomplete. Recall that *Cuozzo* itself applied § 314(d)’s appeal bar to a challenge on grounds other than § 314(a). See *supra*, at 56. To understand how far beyond § 314(a) the bar on judicial review extends, we look to the statute and *Cuozzo*; for the reasons stated above, they establish that § 314(d) bars challenges resting on § 315(b).⁶

⁶Defending Click-to-Call’s interpretation, the dissent takes a view of our precedent that neither Click-to-Call nor the Federal Circuit advances. See *post*, at 75–78. The dissent does not consider itself bound by *Cuozzo*’s conclusion that § 314(d) bars appeal of “questions that are closely tied to the application and interpretation of statutes related to the Patent Office’s decision to initiate inter partes review,” 579 U. S., at 275. According to the dissent, that statement is dicta later repudiated in *SAS Institute Inc. v. Iancu*, 584 U. S. 357 (2018).

But *Cuozzo* concerned an appeal resting on a “related statutory section”: § 312(a)(3). 579 U. S., at 271. That § 312(a)(3) challenge was tied to institution, the Court explained, for two reasons: first, because it “attack[ed] a ‘determination . . . whether to institute’ review,” *id.*, at 272; second, because the § 312(a)(3) challenge was related to invoking § 314(a)’s condition on institution, *id.*, at 275–276. *Cuozzo*’s recognition that § 314(d) can bar challenges rooted in provisions other than § 314(a) was hardly “dicta,” *post*, at 76–77—it was the Court’s holding. And *SAS Institute* purported to adhere to *Cuozzo*, not to overrule it. 584 U. S., at 370–371. The Court in *SAS Institute* said, specifically, that it discerned “nothing in . . . *Cuozzo*” inconsistent with its conclusion. *Id.*, at 371.

We do not so lightly treat our determinations as dicta and our decisions as overruling others *sub silentio*. Nor can we countenance the dissent’s dangerous insinuation that today’s decision is not “really” binding precedent. *Post*, at 77–78 (“[W]ho can say?”); *post*, at 78 (“Litigants and lower courts alike will just have to wait and see.”). Lest any “confusion” remain, *post*, at 77, we reaffirm today our holding in *Cuozzo*: Section 314(d) generally precludes appeals of the agency’s institution decision, including, beyond genuine debate, appeals “consist[ing] of questions that are closely tied to the application and interpretation of statutes related to” the insti-

Appendix to opinion of the Court

V

Click-to-Call presses an alternative reason why the Board’s ruling on its §315(b) objection is appealable. The Board’s final written decision addressed the §315(b) issue, so Click-to-Call argues that it may appeal under §319, which authorizes appeal from the final written decision. But even labeled as an appeal from the final written decision, Click-to-Call’s attempt to overturn the Board’s §315(b) ruling is still barred by §314(d). Because §315(b)’s sole office is to govern institution, Click-to-Call’s contention remains, essentially, that the agency should have refused to institute inter partes review. As explained, §314(d) makes that contention unreviewable.

* * *

For the reasons stated, we vacate the judgment of the United States Court of Appeals for the Federal Circuit and remand the case with instructions to dismiss for lack of appellate jurisdiction.

It is so ordered.

APPENDIX OF KEY STATUTORY PROVISIONS

35 U. S. C. §314:

“Institution of inter partes review

“(a) THRESHOLD.—The Director may not authorize an inter partes review to be instituted unless the Director determines that the information presented in the petition filed under section 311 and any response filed under section 313 shows that there is a reasonable likelihood that the petitioner would prevail with respect to at least 1 of the claims challenged in the petition.

“(b) TIMING.—The Director shall determine whether to institute an inter partes review under this chapter

tution decision. 579 U. S., at 271, 275. The appeal bar, we therefore reiterate, is not limited to the agency’s application of §314(a).

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pursuant to a petition filed under section 311 within 3 months after—

“(1) receiving a preliminary response to the petition under section 313; or

“(2) if no such preliminary response is filed, the last date on which such response may be filed.

“(c) NOTICE.—The Director shall notify the petitioner and patent owner, in writing, of the Director’s determination under subsection (a), and shall make such notice available to the public as soon as is practicable. Such notice shall include the date on which the review shall commence.

“(d) NO APPEAL.—The determination by the Director whether to institute an inter partes review under this section shall be final and nonappealable.”

35 U. S. C. § 315(b):

“PATENT OWNER’S ACTION.—An inter partes review may not be instituted if the petition requesting the proceeding is filed more than 1 year after the date on which the petitioner, real party in interest, or privy of the petitioner is served with a complaint alleging infringement of the patent. The time limitation set forth in the preceding sentence shall not apply to a request for joinder under subsection (c).”

JUSTICE GORSUCH, with whom JUSTICE SOTOMAYOR joins as to Parts I, II, III, and IV, dissenting.

Today the Court takes a flawed premise—that the Constitution permits a politically guided agency to revoke an inventor’s property right in an issued patent—and bends it further, allowing the agency’s decision to stand immune from judicial review. Worse, the Court closes the courthouse not in a case where the patent owner is merely unhappy with the merits of the agency’s decision but where the owner

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claims the agency's proceedings were unlawful from the start. Most remarkably, the Court denies judicial review even though the government now concedes that the patent owner is *right* and this entire exercise in property-taking-by-bureaucracy was forbidden by law.

It might be one thing if Congress clearly ordained this strange result. But it did not. The relevant statute, the presumption of judicial review, and our precedent all point toward allowing, not forbidding, inventors their day in court. Yet, the Court brushes past these warning signs and, in the process, carries us another step down the road of ceding core judicial powers to agency officials and leaving the disposition of private rights and liberties to bureaucratic mercy.

I

Our story stretches back to the 1990s, when Stephen DuVal invented a system for anonymizing telephone calls. Believing in the promise of his idea, Mr. DuVal hired an attorney to secure a patent and sought avenues to bring his invention to market. Initially, both efforts met with success. In 1998, Mr. DuVal was awarded a U. S. Patent, which he licensed to a company called InfoRocket.com, Inc.

But problems soon emerged. In 2001, InfoRocket accused Ingenio, Inc., a predecessor of today's petitioner Thryv, Inc., of infringing Mr. DuVal's patent. The case carried on in federal district court for more than a year before InfoRocket and Ingenio decided to merge. The companies then jointly persuaded the court to dismiss InfoRocket's lawsuit without prejudice.

Still, the quiet did not last long. Following the merger, the surviving entity—for simplicity, call it Thryv—sought to turn the tables on Mr. DuVal by asking the Patent Office to reconsider the validity of his patent in an *ex parte* reexamination. That agency-led process dragged on for four more years, and ended with a mixed verdict: The Patent Office

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canceled a few claims, but amended others and permitted Mr. DuVal to add some new ones too.

Even the *ex parte* reexamination wasn't enough to put the parties' disputes to rest. During the reexamination, Thryv terminated its license with Mr. DuVal and stopped paying him royalties. But it seems that Thryv continued using the patented technology all the same. So Mr. Duval transferred his patent to respondent Click-to-Call Technologies LP (CTC), which swiftly took the patent back to court. CTC noted that Thryv couldn't exactly plead ignorance about this patent, given that the company or its predecessors had previously licensed the patent, been sued for infringing it, and asked the Patent Office to reexamine it. When it came to Mr. DuVal's patent, CTC alleged, Thryv had done just about everything one can do to a patent except invent it.

Thryv responded by opening another new litigation front of its own. One year after CTC filed its federal lawsuit, Thryv lodged another administrative petition with the Patent Office, this time seeking *inter partes* review. Echoing some of the same arguments that led to its push for an *ex parte* administrative reexamination nine years earlier, and adding other arguments too, Thryv (again) asked the agency to cancel Mr. DuVal's patent on the grounds that it lacked novelty and was obvious. At the same time, Thryv sought to stay proceedings in CTC's infringement suit. Thryv argued that the district court should defer to the newly initiated *inter partes* review. Like many district courts facing the prospect of parallel administrative proceedings, this one obliged.

Why at this late hour did Thryv prefer to litigate before the agency rather than a federal district court? The agency's *ex parte* reexamination years earlier hadn't helped Thryv much. But since then, Congress had adopted the Leahy-Smith America Invents Act (AIA), 35 U.S.C. § 100 *et seq.* That law created the *inter partes* review process,

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which provides a number of benefits to accused infringers such as Thryv. Like federal court litigation, inter partes review holds the advantage of allowing a private party attacking a patent's validity to participate in adversarial proceedings, rather than rely on the agency to direct its own investigation as it does in ex parte reexamination. Compare 35 U. S. C. § 316 with §§ 302, 304, 305. Inter partes review also allows a party challenging a patent all manner of discovery, including depositions and the presentation of expert testimony. § 316; 37 CFR §§ 42.51–42.65 (2019). At the same time, the burden of proof is lower—requiring challengers like Thryv to prove unpatentability only by a preponderance of the evidence, § 316(e), rather than under the clear and convincing standard that usually applies in court. *Microsoft Corp. v. i4i L. P.*, 564 U. S. 91 (2011). Perhaps most appealing, proceedings take place before the Patent Trial and Appeal Board, rather than in an Article III court, so there is no jury trial before a tenure-protected judge, only a hearing before a panel of agency employees.

Some say the new regime represents a particularly efficient new way to “kill” patents. Certainly, the numbers tell an inviting story for petitioners like Thryv. In approximately 80% of cases reaching a final decision, the Board cancels some or all of the challenged claims. Patent Trial and Appeal Board, Trial Statistics 10 (Feb. 2020), https://www.uspto.gov/sites/default/files/documents/Trial_Statistics_2020_02_29.pdf. The Board has been busy, too, instituting more than 800 of these new proceedings every year. See *id.*, at 6.

Still, Thryv faced a hurdle. Inter partes review “may not be instituted” based on an administrative petition filed more than a year after “the petitioner, real party in interest, or privy of the petitioner is served with a complaint alleging infringement of the patent” in federal court. 35 U. S. C. § 315(b). So, while Congress sought to move many cases out of court and into its new administrative process, it thought